

24STLC06939 24STLC06939

County: los-angeles

Division: Civil Law and Motion

Department: 26

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Case Number: 24STLC06939 Hearing Date: July 9, 2026 Dept: 26

TENTATIVE RULING:

Plaintiff

Kinecta Federal Credit Union's Motion for Attorney's

Fees is continued to 08/27/2026 at 10:00 am in Department 26 in the Spring Street Courthouse. By 07/30/2026, Plaintiff is to file and serve a supplemental declaration that provides evidence in support of the lodestar for the attorney's fees award. By 08/13/2026, Defendant is to file and serve a supplemental opposition.

Analysis:

Plaintiff Kinecta Federal Credit Union ("Plaintiff") brought this action for breach of contract against Defendant Fernando Ponce ("Defendant") on September 24, 2024. Defendant filed an Answer on November

14, 2024. The action came for trial

on March 24, 2026, at which time the Court found in favor of Plaintiff. (Minute Order 03/24/26.) Two days later, Plaintiff filed a Memorandum of Costs. On April 10, 2026, the Court entered judgment and gave notice to both parties.

Plaintiff filed

the instant Motion for Attorney's Fees on April 22, 2026. Defendant filed an opposition on June 24, 2026, and Plaintiff replied on June 26, 2026.

Discussion

Timing of

Motion

Plaintiff brings the instant Motion pursuant to Code of Civil Procedure sections 1032, 1033.5 and Civil Code section 1717. A prevailing party is entitled to recover costs, including attorneys' fees when authorized by contract, statute, or law. (Code Civ. Proc., § 1032, subd. (a)(4); § 1033.5, subd. (a)(10).) A motion for attorney's fees must be filed and served within the time for filing a notice of appeal under Cal. Rules of Court Rule 8.822. (Cal. Rules of Court Rule 3.1702(a).) Cal. Rules of Court Rule 8.822 states that an attorneys' fees motion must be filed within the earlier of (1) 30 days after the trial court clerk serves the moving party with notice of entry of judgment; (2) 30 days after the moving party serves or is served by a party with a document entitled "Notice of Entry" of judgment or a file-endorsed copy of the judgment, accompanied by proof of service; or (3) 90 days after entry of judgment. (Cal. Rules of Court 8.822(1).) Here, the Motion was timely filed within 30 days of entry of judgment.

Entitlement to Attorney's Fees as Prevailing Party

Plaintiff moves for attorney's fees pursuant to the parties' relevant contract provision, which states in relevant part: "You agree to pay all costs of collecting the amount you owe under this Agreement, including court and reasonable attorney fees." (Motion, Marquez Decl., Exh. 1, p. 2, "Collection Costs".) This is reiterated in the Credit Card Account Opening Disclosure that was sent to Defendant on May 28, 2022. (Id. at Exh. 2, p. 3.) Defendant argues in opposition that this provision cannot be enforced under Civil Code section 1717 because it is buried and boilerplate and not clearly stated. The provision on page 2, however, is not "buried"; it is clearly set apart from the other provisions. Nor does the opposition cite any authority for the proposition that a boilerplate fees provision cannot be enforced. (Opp., p. 3:24-26.)

Pursuant to this provision, as the party in whose favor judgment has been entered, the Court finds Plaintiff is entitled to recover attorney's fees incurred in this action. (See Code Civ. Proc., § 1032, subd. (a)(4).)

Calculation of Attorney's Fees Amount

Plaintiff's Motion does not address the applicable standard for determining the attorney's fees award, which the Court

now articulates. The moving party bears the burden of proof with respect to attorney's fees. (Code Civ. Proc., § 1033.5, subd. (c)(5)(A).) Specifically, a party seeking fees has the burden of showing the fees incurred are "allowable," are "reasonably necessary to the conduct of the litigation," and are "reasonable in amount." (Levy v. Toyota Motor Sales, U.S.A., Inc. (1992) 4 Cal.App.4th 807, 816.)

The Court's objective is to award attorney's fees at the fair market value based on the particular action. (Ketchum v. Moses (2001) 24 Cal.4th 1122, 1132.) "The reasonable hourly rate is that prevailing in the community for similar work." (PLCM Group v. Drexler (2000) 22 Cal.4th 1084, 1095.) "[T]he fee setting inquiry in California ordinarily begins with the 'lodestar,' i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate" (Ketchum v. Moses (2001) 24 Cal.4th 1122, 1134.)

The lodestar method is based on the factors, as relevant to the particular case: "(1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, (4) the contingent nature of the fee award." (Id. at 1132.) "The "experienced trial judge is the best judge of the value of professional services rendered in his court, and while his judgment is of course subject to review, it will not be disturbed unless the appellate court is convinced that it is clearly wrong.'" (Id.) A negative modifier was appropriate when duplicative work had been performed. (Thayer v. Wells Fargo Bank, N.A. (2001) 92 Cal.App.4th 819.)

The Motion seeks \$14,665.14 in attorney's fees based on time spent by attorneys and other, unidentified timekeepers. According to the supporting declaration, this was for time spent on the Complaint, to review the Answer, drafting written discovery, setting and preparing for a deposition, preparing for and attending trial, and drafting the instant motion. (Motion, Rocha Decl., ¶5 and Exh. A.) However, the attached billing records also reference drafting a motion for summary judgment before Plaintiff even propounded discovery, which the Court does not find reasonably necessary. (Id. at Exh. A, 03/12/25 and 05/01/25 entries). For this work, Plaintiff's counsel billed \$1,938.00. The other tasks mentioned in the attorney declaration appear reasonably necessary to the conduct of the litigation.

Regarding the reasonableness of the time

spent, the Motion provides a single, conclusory paragraph. (Motion, p. 2:16-20.) The supporting declaration states that the two attorneys billed \$315.00 an hour, and other timekeepers billed flat rates for their tasks. (Motion, Rocha Decl., ¶¶3, 8-9.) It is not explained whether these other timekeepers are attorneys, paralegals, support staff, or something else. (Ibid.) A copy of the billing entries for this action is attached, but it is not possible to determine from the entries why the amount billed for any given task was assigned, or reasonable. (See *id.* at Exh. A.) The entries do not correlate to a specific hourly rate, nor does the Motion explain how the flat rates were determined for any given task. At least one entry for .50 hours correlates to an hourly rate of \$340, which is higher than the billing rate for either attorney. Likewise, another entry reflects a charge of \$325.00 for one hour. Since such a significant portion of the billing entries are for flat-rate tasks, the Court is unable to calculate a lodestar, which looks to the number of hours reasonably billed by the hourly rate. The flat-rate entries include neither metric.

Therefore, Plaintiff has failed to demonstrate that the amount of attorney's fees billed in this action was "reasonable in amount" nor how the Court can determine the lodestar figure from the evidence provided.

Conclusion

Plaintiff

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Moving party to give notice.